

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION FOR UNUSUAL AND COMPELLING URGENCY

1. Agency: DLA Aviation Contracting Activity: DLA Aviation- FMB, Northrop Grumman IST
 Document Identification Number: PR 95916650 Solicitation Number: SPE4A5-24-R-0180
☒ FAR Part 15 ☐ FAR Part 12 ☐ FAR Part 13.5

2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis due to unusual and compelling urgency.

☒ New Action ☐ Amendment: _____

3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/PN	QUANTITY	ESTIMATED VALUE
CNRP, Control Panel C	1680-01-610-2343	6 EACH	
	PN: 123AV80036-301		

*If too numerous, attach list of NSNs and AMSC codes.

4. The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(2) – Unusual and Compelling Urgency.

Delivery in Days	336 DAYS ARO
Current IPG1 Backorders	3
Projected IPG1 Backorders	4

5. The acquisition is restricted to the only source(s) of supply known to have the capability of furnishing the required supplies/services within the timeframe allowed to meet the exigency. Source(s) are:

CAGE	COMPANY NAME
70974	Northrop Grumman Systems Corporation

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- ☐ The acquisition will be synopsized on or about _____ and any firm requesting a solicitation copy will be provided one.
- ☐ A synopsis exception cited in FAR 5.202 applies: (Explain) _____
- ☐ Manufacturers of similar products identified in the market survey will be solicited.
- ☐ Dealers of the manufacturers will be solicited.
- ☒ Other: (Explain) Sources sought was waived and NOT posted to SAM.gov due to procurement being Urgent and Compelling (U&C)
 Due to procurement being Urgent and Compelling a Synopsis is not required, DFARS PGI 206.302-2. Urgent and Compelling, Synopsis Waived

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. (Explain) Discuss relevant pricing issues, including the basis for determining that the anticipated price/cost will be fair and reasonable. Procurement was not synopsized due to being Urgent & Compelling (U&C)

8. A market survey as defined by FAR 10:

- ☐ was conducted, and firms indicating an interest in the acquisition will be solicited. Market research efforts, include: _____
- ☒ was not conducted due to the unusual and compelling urgency of the requirement.

CONTROLLED BY: (AGENCY)
 CONTROLLED BY:
 CUI CATEGORY:
 DISTRIBUTION/DISSEMINATION
 CONTROL:
 POC: _____

☐ was not conducted due to: _____

9. Additional facts supporting unusual and compelling urgency resulting in other than full and open competition are:

- ☒ The requisitioner has assigned a priority designator within Issue Priority Group (IPG) 1.
☐ The requisitioner has also cited an expedited handling signal of 999m N__, or E__, or an Office of the Secretary of Defense/Joint Chiefs of Staff project code beginning with a "9".
☐ As stated in the attached certification by the requiring activity, the Military Services will be seriously injured if contract award is delayed. The extent and nature of harm are detailed in the attached certification.
☐ Other: _____

10. A listing of sources, if any, indicating an interest in writing in the acquisition are: (if none, state none)

CAGE	COMPANY NAME
70974	Northrop Grumman Systems Corporation
_____	_____
_____	_____
_____	_____

11. The actions, being taken to overcome barriers to competition before any subsequent acquisition are made: (Explain)

Urgent and Compelling. Sources SOught and Synopsis were both waived. Letter RFP Applies.

This is sole sourced to Northrop Grumman Systems Corporation CAGE 70974 and will be awarded against a basic agreement (BOA)

APPROVAL

APPROVAL LEVELS OF THE JUSTIFICATION – FAR 6.304

- ☒ not exceeding \$750,000..... Contracting Officer
☐ over \$750,000 not exceeding \$15,000,000..... Competition Advocate

TECHNICAL/REQUIREMENTS PERSONNEL CERTIFICATION – FAR 6.303-2(c)

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification have been certified as complete and accurate by the cognizant technical/requirements Personnel. Signature of technical/requirements personnel is not required.

DLA COUNSEL AVIATION – DLAD 1.691(e)(ii)

DLA Counsel Aviation has reviewed the information contained in this justification and has concluded it is legally sufficient.

Name and Title	Signature	Phone	Date
	SEBOLD.ROBERT.E.12301 86975 Digitally signed by SEBOLD.ROBERT.E. Date: 2024.09.12 09:07		

CONTRACTING OFFICER – FAR 6.303-2(b)(12)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

Name and Title	Signature	Phone	Date
Christy L. Oakley	OAKLEY.CHRISTY.L .1406523930 Digitally signed by OAKLEY.CHRISTY.L Date: 2024.09.11		9/11/2024

COMPETITION ADVOCATE – FAR 6.304(a)(2)

The Competition Advocate for the procuring activity designated pursuant to FAR 6.501 has reviewed and approved this Justification for a proposed contract over \$750,000 but not exceeding \$15 million.

Name and Title	Signature	Phone	Date
_____	_____	_____	_____